REAL ESTATE OWNERSHIP · 1

Fee Simple

ANSWER · 1

The most complete form of ownership — the owner holds all rights to the property indefinitely, subject only to governmental powers (taxation, eminent domain, police power, escheat) and any recorded encumbrances.

REAL ESTATE OWNERSHIP · 2

Joint Tenancy

ANSWER · 2

Co-ownership with an automatic right of survivorship — when one joint tenant dies, their share passes directly to the surviving joint tenant(s), not through probate. Traditionally requires unity of time, title, interest, and possession.

REAL ESTATE OWNERSHIP · 3

Tenancy in Common

ANSWER · 3

Co-ownership where each owner holds an undivided (possibly unequal) interest with NO right of survivorship — a deceased owner's share passes through their estate/will, not automatically to co-owners.

REAL ESTATE OWNERSHIP · 4

Life Estate

ANSWER · 4

An ownership interest that lasts only for the life of a named person (the "life tenant"). Upon that person's death, the property passes automatically to the remainderman named in the deed.

REAL ESTATE OWNERSHIP · 5

Leasehold Estate

ANSWER · 5

A tenant's right to possess and use real property for a defined term under a lease — distinguished from a "freehold" (ownership) estate.

REAL ESTATE OWNERSHIP · 6

Four Unities of Joint Tenancy

ANSWER · 6

Time, Title, Interest, and Possession — all joint tenants must acquire their interest at the same time, by the same document, with equal shares, and equal right to possess the whole property. Break one unity and it becomes a tenancy in common.

REAL ESTATE OWNERSHIP · 7

Severing a Joint Tenancy

ANSWER · 7

A joint tenant can unilaterally break the joint tenancy — e.g., by conveying their interest to a third party — which converts that share into a tenancy-in-common interest.

REAL ESTATE OWNERSHIP · 8

Colorado & Marital Property

ANSWER · 8

Colorado is a common-law / equitable-distribution state, NOT a community property state — spousal ownership follows title and equitable division rules rather than automatic 50/50 community property rules.

REAL ESTATE OWNERSHIP · 9 EXAM-STYLE

An interest in real property for a specific period of time is a:

ANSWER · 9

Leasehold estate

Specific time → LEASE. Specific person's lifetime → LIFE ESTATE.

General real-property knowledge rather than a Colorado-specific rule. Fee simple, life estate, and leasehold are the core estates in Real Estate Ownership.

REAL ESTATE OWNERSHIP · 10 EXAM-STYLE

A husband and wife own property as joint tenants. One spouse conveys their entire interest to the other spouse. What is the resulting ownership status?

ANSWER · 10

Sole ownership in fee simple by the receiving spouse

Two owners A + B. A gives ALL of A's interest to B → B owns 100%. If A sells to outside C instead → think severance / tenancy in common.

Colorado recognizes joint tenancy with a right of survivorship and allows severance of joint-tenancy interests by conveyance.

REAL ESTATE OWNERSHIP · 11 EXAM-STYLE

Which form of ownership does NOT have an automatic right of survivorship?

A. Tenancy in common
B. Joint tenancy
C. Tenancy by the entirety
D. Community property with right of survivorship

ANSWER · 11

Tenancy in common

Only TENANCY IN COMMON lacks survivorship — it is the one that goes through the estate.

Colorado is a common-law / equitable-distribution state, not a community property state, and does not recognize tenancy by the entirety.

YOUR OWN CARD

ANSWER